

# **CV-25-005765 GEREN, PEGGY vs TARGET CORPORATION - Defendant Target Corporation's Motion for Summary Judgment, or in the Alternative, Summary Adjudication - DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Governing Law A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one sufficient to support the position of the party in question.” (Id. at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that “a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed.” (Garcia v. World Savings, FSB (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (Barber v. Marina Sailing, Inc. (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (Anderson v. Metacalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.) In addition to moving for summary judgment, “[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2). Request for Judicial Notice Defendant requests judicial notice of the complaint and answer. The request for judicial notice is unnecessary as the Court probably need not make such a ruling to consider papers filed in the instant case. (See Bienville Water Supply Co. v. City of Mobile (1902) 186 U.S. 212, 217.) The Request for Summary Adjudication Is Procedurally Defective The request for summary adjudication fails to comply with rule 3.1350(b) of the California Rules of Court, which states in relevant part, “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Emphasis added.) Here, the Separate Statement sets forth two issues: (1) “PLAINTIFF CANNOT MEET HER BURDEN OF PROOF FOR ‘NEGLIGENCE’ (FIRST CAUSE OF ACTION, DERIVATIVE TO PREMISES LIABILITY)”; and (2) “PLAINTIFF CANNOT MEET HER BURDEN OF PROOF FOR ‘PREMISES LIABILITY’ (SECOND CAUSE OF ACTION).” However, neither of these issues is expressly set forth in the notice of motion and motion. The request is therefore procedurally defective. The Court nonetheless reaches the merits. Dangerous Condition Defendant's showing relies on evidence that the subject metal stool was installed beneath a sink, did not obstruct the ordinary pedestrian pathway, and complied with applicable building and accessibility standards. (UMF Nos. 3, 7, 11.) Defendant further relies on expert testimony that the stool was visible, stable, securely anchored, and did not present an unreasonable risk of harm to persons exercising ordinary care. (UMF Nos. 7–8, 11.) This evidence is sufficient to shift the burden. However, Plaintiff's competing expert evidence adequately addresses that evidence. Plaintiff's additional material facts assert that the stool protruded 1/16 to 1/2 inch beyond the sink edge and into the walkway, thereby creating a tripping hazard and violating installation guidelines and industry standards. (See Plaintiff's Response to UMF Nos. 6–8; AMF Nos. 46, 50.) Note that the instructions for installation of the Step 'n Wash stool specifically state, “Step 'n Wash is designed to be installed behind the front edge of the sink or counter. This ensures that the step stool is safely out of the way for guests who don't need it.” (See 6/3/26 Moore Decl., Exh. C [pdf p. 61].) Because the parties present conflicting expert opinions regarding whether the stool was located within the pedestrian path and whether its condition created an unreasonable risk of harm, a triable issue exists as to the element of dangerous condition. Notice Defendant argues Plaintiff cannot establish notice, relying on the absence of prior incidents and lack of evidence of any defect. (UMF Nos. 4, 9–10.) Specifically, Defendant presents evidence that the stool had been installed since March 2021 and that no prior incidents had occurred. (UMF No. 4.) Defendant also asserts Plaintiff cannot identify any malfunction, improper condition, or “overt feature” placing Defendant on notice. (UMF Nos. 9–10.) Again, though, Plaintiff disputes these facts and contends that notice is established because Defendant created the condition—by installing the stool in a manner that caused it to protrude into the walkway. (Response

to UMF Nos. 6–8.) If a trier of fact credits Plaintiff's evidence that Defendant installed the stool in violation of guidelines and in a location intruding into the walking area, notice may be imputed. Accordingly, triable issues of material fact exist as to notice. Trivial Defect Doctrine Defendant contends that even if a condition existed, it was trivial as a matter of law. Although most courts use a two-step analysis to determine whether a defect is trivial as a matter of law, the Fifth Appellate District has rejected that approach and instead favors "a holistic multifactor framework for assessing triviality...." (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 114 (*Stack*), reh'g denied (May 22, 2023), review denied (July 26, 2023).) The most important factor is the defect's size. (See *id.*, at p. 111.) But then, "[b]eyond size, additional factors courts typically consider in assessing a ... condition's triviality as a matter of law are: the nature and quality of the defect ...; whether anything was obstructing or concealing the defect ...; the lighting and weather conditions at the time of the incident; whether the defect has caused other accidents; and plaintiff's familiarity with the area." (*Id.*, at p. 115 [emphases added].) Defendant's argument is grounded in the minimal dimension of the alleged protrusion. Defendant's evidence establishes that the stool was a fixed fixture beneath a sink and not located in the ordinary pedestrian walkway. (UMF Nos. 3, 7, 11.) In opposition, Plaintiff presents evidence that the view of the stool is largely blocked by the sink, the stool extended into the walkway space and created a tripping hazard due to its low profile and location along a path of travel to the hand dryer. (Response to UMF Nos. 6–8; AMF Nos. 40–41, 44.) Plaintiff also asserts that she was unfamiliar with the restroom; this was the first time she could recall using it. (AMF No. 14.) Additionally, the undisputed facts establish that Plaintiff exited a stall, walked to the sink, turned toward the hand dryer, and struck the stool with her right foot. (UMF No. 5.) The Court is unconvinced that this layout can be cleanly analogized to sidewalk or other floor defects. These surrounding circumstances—including the configuration of the restroom, the location of the stool relative to the path to the hand dryer, and visibility issues—are relevant to the trivial defect analysis. Given the conflicting analysis regarding the stool's placement and its interaction with the foreseeable route taken by restroom users, the Court declines to find that the defect was trivial as a matter of law. Open and Obvious Defendant argues that the condition was open and obvious and therefore negates duty. This appears to be at odds with the assertion that it was trivial. Defendant's evidence includes that the stool was visible and stationary beneath the sink and that Plaintiff did not see it before the incident. (UMF Nos. 3, 5.) The undisputed facts further show that Plaintiff entered the restroom, used a stall, walked to the sink, and then, after turning toward the hand dryer, struck the stool and fell. (UMF No. 5.) Plaintiff, however, disputes the implications of these facts and presents evidence that the stool was not readily visible from a sink user's perspective and was obscured by the sink structure. (Response to UMF Nos. 6–8; AMF No. 41.) Plaintiff also contends that the restroom layout required patrons to traverse the area where the stool was located in order to access the hand dryer. (AMF No. 44.) Whether the condition was sufficiently obvious, and whether Defendant nonetheless owed a duty to remedy or warn of the condition, depends on disputed factual issues, including visibility and necessity of encountering the condition. Accordingly, triable issues of fact preclude summary judgment on this ground.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: a98c8713b6ea1033affabd3239a2f6b99583f7589eb38ff16de5cc6934734e17

CV-25-005765 - GEREN, PEGGY vs TARGET CORPORATION - Defendant Target Corporation's Motion for Summary Judgment, or in the Alternative, Summary Adjudication - DENIED.

## Governing Law

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that "a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Ibid.*)

"Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (*Anderson v. Metalclad Insulation Corp.* (1999) 72 Cal.App.4th 284, 297.)

In addition to moving for summary judgment, “[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).

#### Request for Judicial Notice

Defendant requests judicial notice of the complaint and answer. The request for judicial notice is unnecessary as the Court probably need not make such a ruling to consider papers filed in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.)

#### The Request for Summary Adjudication Is Procedurally Defective

The request for summary adjudication fails to comply with rule 3.1350(b) of the California Rules of Court, which states in relevant part, “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Emphasis added.) Here, the Separate Statement sets forth two issues: (1) “PLAINTIFF CANNOT MEET HER BURDEN OF PROOF FOR ‘NEGLIGENCE’ (FIRST CAUSE OF ACTION, DERIVATIVE TO PREMISES LIABILITY)”; and (2) “PLAINTIFF CANNOT MEET HER BURDEN OF PROOF FOR ‘PREMISES LIABILITY’ (SECOND CAUSE OF ACTION).” However, neither of these issues is expressly set forth in the notice of motion and motion. The request is therefore procedurally defective. The Court nonetheless reaches the merits.

#### Dangerous Condition

Defendant’s showing relies on evidence that the subject metal stool was installed beneath a sink, did not obstruct the ordinary pedestrian pathway, and complied with applicable building and accessibility standards. (UMF Nos. 3, 7, 11.)

Defendant further relies on expert testimony that the stool was visible, stable, securely anchored, and did not present an unreasonable risk of harm to persons exercising ordinary care. (UMF Nos. 7–8, 11.)

This evidence is sufficient to shift the burden.

However, Plaintiff’s competing expert evidence adequately addresses that evidence. Plaintiff’s additional material facts assert that the stool protruded 1/16 to 1/2 inch beyond the sink edge and into the walkway, thereby creating a tripping hazard and violating installation guidelines and industry standards. (See Plaintiff’s Response to UMF Nos. 6–8; AMF Nos. 46, 50.) Note that the instructions for installation of the Step ‘n Wash stool specifically state, “Step ‘n Wash is designed to be installed behind the front edge of the sink or counter. This ensures that the step stool is safely out of the way for guests who don’t need it.” (See 6/3/26 Moore Decl., Exh. C [pdf p. 61].)

Because the parties present conflicting expert opinions regarding whether the stool was located within the pedestrian path and whether its condition created an unreasonable risk of harm, a triable issue exists as to the element of dangerous condition.

#### Notice

Defendant argues Plaintiff cannot establish notice, relying on the absence of prior incidents and lack of evidence of any defect. (UMF Nos. 4, 9–10.)

Specifically, Defendant presents evidence that the stool had been installed since March 2021 and that no prior incidents had occurred. (UMF No. 4.)

Defendant also asserts Plaintiff cannot identify any malfunction, improper condition, or “overt feature” placing Defendant on notice. (UMF Nos. 9–10.)

Again, though, Plaintiff disputes these facts and contends that notice is established because Defendant created the condition—by installing the stool in a manner that caused it to protrude into the walkway. (Response to UMF Nos. 6–8.)

If a trier of fact credits Plaintiff’s evidence that Defendant installed the stool in violation of guidelines and in a location intruding into the walking area, notice may be imputed.

Accordingly, triable issues of material fact exist as to notice.

#### Trivial Defect Doctrine

Defendant contends that even if a condition existed, it was trivial as a matter of law.

Although most courts use a two-step analysis to determine whether a defect is trivial as a matter of law, the Fifth Appellate District has rejected that approach and instead favors “a holistic multifactor framework for assessing triviality....” (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 114 (Stack), reh’g denied (May 22, 2023), review denied (July 26, 2023).) The most important factor is the defect’s size. (See *id.*, at p. 111.) But then, “[b]eyond size, additional factors courts typically consider in assessing a ... condition’s triviality as a matter of law are: the nature and quality of the defect ...; whether anything was obstructing or concealing the defect ...; the lighting and weather conditions at the time of the incident; whether the defect has caused other accidents; and plaintiff’s familiarity with the area.” (*Id.*, at p. 115 [emphases added].)

Defendant’s argument is grounded in the minimal dimension of the alleged protrusion. Defendant’s evidence establishes that the stool was a fixed fixture beneath a sink and not located in the ordinary pedestrian walkway. (UMF Nos. 3, 7, 11.)

In opposition, Plaintiff presents evidence that the view of the stool is largely blocked by the sink, the stool extended into the walkway space and created a tripping hazard due to its low profile and location along a path of travel to the hand dryer. (Response to UMF Nos. 6–8; AMF Nos. 40–41, 44.) Plaintiff also asserts that she was unfamiliar with the restroom; this was the first time she could recall using it. (AMF No. 14.)

Additionally, the undisputed facts establish that Plaintiff exited a stall, walked to the sink, turned toward the hand dryer, and struck the stool with her right foot. (UMF No. 5.)

The Court is unconvinced that this layout can be cleanly analogized to sidewalk or other floor defects.

These surrounding circumstances—including the configuration of the restroom, the location of the stool relative to the path to the hand dryer, and visibility issues—are relevant to the trivial defect analysis.

Given the conflicting analysis regarding the stool's placement and its interaction with the foreseeable route taken by restroom users, the Court declines to find that the defect was trivial as a matter of law.

#### Open and Obvious

Defendant argues that the condition was open and obvious and therefore negates duty. This appears to be at odds with the assertion that it was trivial.

Defendant's evidence includes that the stool was visible and stationary beneath the sink and that Plaintiff did not see it before the incident. (UMF Nos. 3, 5.)

The undisputed facts further show that Plaintiff entered the restroom, used a stall, walked to the sink, and then, after turning toward the hand dryer, struck the stool and fell. (UMF No. 5.)

Plaintiff, however, disputes the implications of these facts and presents evidence that the stool was not readily visible from a sink user's perspective and was obscured by the sink structure. (Response to UMF Nos. 6–8; AMF No. 41.) Plaintiff also contends that the restroom layout required patrons to traverse the area where the stool was located in order to access the hand dryer. (AMF No. 44.)

Whether the condition was sufficiently obvious, and whether Defendant nonetheless owed a duty to remedy or warn of the condition, depends on disputed factual issues, including visibility and necessity of encountering the condition.

Accordingly, triable issues of fact preclude summary judgment on this ground.